

25SMCV03450 25SMCV03450

County: los-angeles

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Case Number: 25SMCV03450 Hearing Date: September 24, 2026 Dept: P

Tentative

Ruling

Barbara

Burrell, et al. v. Essex Management, et al., Case No. 25SMCV03450

Plaintiff's

Motion to Compel Further Responses to

Hearing

Date: September 24, 2026

Background

Plaintiffs

Barbara Burrell and Sky's Gourmet Marketplace sue Defendants Essex Management Corporation, Essex Marina City Club, Marina City Club Condominium Association, Property Management Professionals, the County of Los Angeles, and Does 1-350 for fourteen causes of action arising out of their lease to the premises at 4344 Promenade Way, Unit 202 and Suite 001, Marina Del Rey, California. Plaintiffs initially also made claims against the Essex Defendants' attorneys, Kimball, Tirey, & St. John ("KTS").

On August

29, 2025, Defendant KTS filed an Anti-SLAPP motion. On November 10, 2025, the Court granted KTS's Anti-SLAPP on November 10, 2025.

On March

13, 2026, the Court sustained the Essex Defendant's demurrer and the County of Los Angeles's demurrer.

On May 13, 2026, the Court granted Plaintiffs' Motion for Reconsideration and amended its March 13 ruling on the demurrer to correct errors caused by citations to an outdated version of the Los Angeles Rent Stabilization Tenant Protection Ordinance ("LA RSTPO").

On July 14, 2026, the Court denied Plaintiff's Motion for Sanctions based on the citations to the outdated LA RSTPO in the demurrer papers.

On September 8, 2026, Plaintiff filed a Second Amended Complaint.

On May 12, 2026, Plaintiff Sky's Gourmet Marketplace ("Plaintiff") filed this Motion to Compel Further Responses and Production of Documents Requested in the Notice of Deposition of Susan Bowie. On August 24, 2026, the Court held an IDC and ordered Defendant's counsel to file and serve supplemental responses by September 7, 2026. On September 17, 2026, the Essex Defendants filed a declaration stating that it served compliant responses on September 10, 2026. On September 17, 2026, Plaintiff filed a reply arguing that the supplemental responses are not code-compliant.

Motion to Compel Further Responses

The propounding party may file motions to compel further responses to requests for production if it believes the responses received are (1) evasive, (2) incomplete, or (3) if the objections raised are meritless or overly general. (Code Civ. Proc., § 2031.310, subd. (a

The burden is on the moving party to "set forth specific facts showing good cause justifying the discovery sought by the demand." (Code Civ. Proc., § 2031.310, subd. (b)(1).) This burden "is met simply by a fact-specific showing of relevance." (TBG Ins. Servs. Corp. v. Superior Court (2002) 96 Cal.App.4th 443,

448.) In response to a motion to compel further responses, the respondent bears the burden of justifying any objections. (Fairmont Ins. Co. v. Superior Court (2000) 22 Cal.4th 245, 255.)

Here, the

Essex Defendants produced supplemental discovery responses on September 10, 2026, mooted this motion to compel further responses. (See Code Civ. Proc. § 2031.310(c) [“Unless notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, . . . the demanding party waives the right to compel a further response to this demand.”].) If Plaintiff wishes to contest the validity of the Essex Defendants’ supplemental responses, it must bring a new motion.

Although

the motion is mooted by the supplemental responses, the Court reminds the parties that where a statement that a party will comply with a production demand must state whether the production will be in whole or in part, “and that all documents or things in the demanded category that are in the possession, custody, or control of that party and to which no objection is being made will be included in the production.” (Code Civ. Proc. § 2031.220.) Moreover, an objection must (1) identify, with particularity, any document or tangible thing falling within any category of item in the demand to which the objection is being made, and (2) “set forth clearly the extent of, and the specific ground for, the objection.” (Code Civ. Proc. § 2031.240.) If the objection is based on privilege, the response must provide sufficient information to evaluate the merits of the claim, including, if necessary, a privilege log. (Ibid.)

Sanctions

Although

the service of supplemental responses moots the motion to compel, it does not moot the issue of sanctions incurred in bringing the motion. “[T]he court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc. § 2031.310(h).)

Plaintiff

seeks sanctions for 6.5 hours preparing this motion at its attorney's hourly rate of \$750 per hour. (Hakimfar Decl., ¶ 17.) Plaintiff attests that its attorney spent an additional 4.5 hours on this motion after it was filed, but does not request additional fees for this time. (Supplemental Hakimfar Decl., ¶ 14.) The Essex Defendants do not oppose the request for sanctions. After review, the Court agrees that 6.5 hours on this issue is reasonable, given the IDC and the meet and confer process. However, the Court believes that \$750 per hour is excessive for a landlord/tenant dispute. Instead, the Court will award Plaintiff fees at \$400/hour, which is consistent with the rates in matters of this type. As such, the Court awards Plaintiff \$2,600 in sanctions.

Conclusion

The Motion

to Compel Further Responses is DENIED as Moot.

Plaintiff

is awarded \$2,600 in sanctions.